

24PSCV03976 24PSCV03976

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Case Number: 24PSCV03976 Hearing Date: June 24, 2026 Dept: G

Defendant

Cesar A. Hernandez's Demurrer to Plaintiff Rodolfo Lara's Complaint

Respondent: Plaintiff Rodolfo Lara

Defendant

Cesar A. Hernandez's Motion to Strike Portions of Rodolfo Lara's Complaint

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Defendant

Cesar A. Hernandez's Demurrer to Plaintiff Rodolfo Lara's Complaint is SUSTAINED

IN PART WITH TWENTY (20) DAYS LEAVE TO AMEND, SUSTAINED IN PART WITHOUT LEAVE

TO AMEND, and OVERRULED IN PART.

Defendant

Cesar A. Hernandez's Motion to Strike Portions of Rodolfo Lara's Complaint is deemed

MOOT.

BACKGROUND

This

is a wrongful eviction action. In

January 2010, plaintiff Rodolfo Lara (Lara) allegedly entered into a lease

agreement with defendant Cesar A. Hernandez (Hernandez), Lara paid Hernandez a

\$1,000.00 security deposit, and Lara and his family moved into residential real

property owned by Hernandez. In 2017,

Hernandez allegedly installed solar panels on the property and represented that

they would decrease Lara's utility bill.

In 2018, Lara allegedly complained to Hernandez about a leaking roof,

plumbing issues, broken windows, and an infestation of rodents and insects, and

Hernandez allegedly replied that Lara was responsible for fixing those

issues. On November 26, 2021, Hernandez

allegedly requested that Lara and his family vacate the property. On May 6 and 7, 2022, Hernandez allegedly

repeated demands that Lara and his family vacate the property. Hernandez allegedly filed the first unlawful

detainer action shortly thereafter. In

October 2022, Lara allegedly stopped making payments on the solar panels. In early 2023, Hernandez allegedly dismissed

the first unlawful detainer action and entered the property without Lara's

permission. In June 2023, Hernandez

allegedly served Lara with a notice to vacate.

On July 20, 2023, Hernandez allegedly filed the second unlawful detainer

action (case no. 23WCUD01479). In late

2023 or early 2024, Lara allegedly reported Lara and the property to nonparty

Los Angeles County Department of Public Health (DPH). In February 2024, DPH allegedly found that

the property violated health and safety regulations. In March 2024, Hernandez allegedly fixed the

leaking roof. In May 2024, the second

unlawful detainer action allegedly concluded with Hernandez agreeing to pay

Lara \$6,000.00 in relocation fees, but Hernandez allegedly failed to return

Lara's \$1,000.00 security deposit.

On

November 19, 2024, Lara filed the Complaint, alleging causes of action for (1) breach

of the implied warranty of habitability, (2) breach of the implied covenant of

quiet enjoyment, (3) harassment, (4) retaliation, (5) constructive eviction,

(6) negligence, (7) intentional infliction of emotional distress, (8) negligent

infliction of emotional distress, (9) wrongful withholding of security deposit,

(10) fraud by misrepresentation, and (11) unlawful business practices.

On

May 14, 2026, Hernandez filed this demurrer with motion to strike. On May 29, 2026, Lara filed an opposition to

the demurrer but not an opposition to the motion to strike. On June 4, 2026, Hernandez filed the reply to the demurrer.

This

case is set for an order to show cause re: default judgment and a hearing on the demurrer with motion to strike on June 24, 2026.

REQUESTS

FOR JUDICIAL NOTICE

Hernandez

requests that the court take judicial notice of documents from the second unlawful detainer action. The court may

take judicial notice of the records of any California court. (Evid. Code, § 452, subd. (d)(1).)

Thus,

the takes judicial notice of the requested documents.

DEMURRER

Hernandez

specifically demurs to the first, second, third, fifth, sixth, and ninth causes

of action on the ground that they are barred by res judicata. Hernandez specifically demurs to the tenth

cause of action on the ground that it is barred by the statute of

limitations. Hernandez specifically

demurs to the fourth, seventh, eighth, tenth, and eleventh causes of action on

the ground that they fail to allege sufficient facts.

For

the following reasons, the demurrer is SUSTAINED IN PART WITH LEAVE

TO AMEND, SUSTAINED IN PART WITHOUT LEAVE TO AMEND, OVERRULED

IN PART, and CONTINUED IN PART.

Res

Judicata

Legal

Standard

A

party may demurrer to a cause of action on the ground that the claim is barred,

as long as the applicability of the bar appears on the face of the pleading or

via proper judicial notice. (See

Marshall v. Gibson, Dunn & Crutcher (1995) 37 Cal.App.4th 1397, 1403,

explaining the rule as it applied to a bar raised by a statute of limitations; see

also Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994,

stating that the ground for demurrer must appear on the face of the pleading or

via proper judicial notice.)

The

legal principle of res judicata bars a party from relitigating a claim or issue

already decided in a previous proceeding.

Res judicata may take the form of claim preclusion, barring a cause of action where (1) the present proceeding is on the same cause of action as the prior proceeding; (2) there was a final judgment on the merits; (3) the parties in the present proceeding or parties in privity with them were parties to the prior proceeding. (See *Central Delta*

Water Agency v. Dept. of Water Resources (2021) 69 Cal.App.5th 170,

206.) Res judicata may also take the

form of issue preclusion, barring the adjudication of an issue where (1) the present proceeding is deciding the same issue as the prior proceeding; (2) there was a final adjudication on the merits; (3) the issue was actually litigated and necessarily decided in the prior proceeding; and (4) the parties in the present proceeding or parties in privity with them were parties to the prior proceeding. (See *DKN Holdings*

LLC v. Faerber (2015) 61 Cal.4th 813, 825.)

Discussion

First

Cause of Action: Breach of the Implied Warranty of Habitability, Second Cause of Action: Breach of the Implied Covenant of Quiet Enjoyment, Third Cause of Action: Harassment, Fifth Cause of Action: Constructive Eviction, and Sixth

Cause of Action: Negligence

Hernandez

argues that the first, second, third, fifth, and sixth causes of action are barred by claim and issue preclusion.

The court disagrees.

Claim

preclusion requires a showing that (1) the present proceeding is on the same cause of action as the prior proceeding; (2) there was a final judgment on the merits; (3) the parties in the present proceeding or parties in privity with them were parties to the prior proceeding.

(See *Central Delta Water Agency*, *supra*, 69 Cal.App.5th at 206.)

For

the second element, the parties entered into an “unlawful detainer stipulation and judgment.” (RJN, Exh. 3, p. 1.) For the third element, the parties in this action are the same as the parties in the unlawful detainer action. (See generally RJN, Exhs. 1–3.)

However,

the court notes this action does not assert the same causes of action as the unlawful detainer action. (See generally Exhs. 1–3.) Thus, the

first, second, third, fifth, and sixth causes of action are not barred by claim

preclusion.

Issue

preclusion requires a showing that (1) the present proceeding is deciding the

same issue as the prior proceeding; (2) there was a final adjudication on the

merits; (3) the issue was actually litigated and necessarily decided in the

prior proceeding; and (4) the parties in the present proceeding or parties in

privity with them were parties to the prior proceeding. (See *DKN Holdings LLC*, *supra*,

61 Cal.4th at 825.)

For

the first element, Lara raised the issues of habitability and harassment as

defenses in the Answer to the unlawful detainer action. (See RJN, Exh. 2, Attach. 3w, pp.

1–2.) These issues are also raised in

this action regarding the first, second, third, fifth, and sixth causes of

action. (See Compl., ¶¶ 49, 51, 53,

55–58, 60, 62, 65, 68–71, 82–86, 89–92.)

For the second element, the parties entered into an “unlawful detainer

stipulation and judgment.” (RJN, Exh. 3,

p. 1.) For the fourth element, the

parties in this action are the same as the parties in the unlawful detainer

action. (See generally RJN, Exhs.

1–3.)

However,

the records from the unlawful detainer action do not indicate that the parties

actually litigated the habitability and harassment issues, nor do the records

indicate that the court necessarily decided those issues. The stipulated judgment provides, “[Lara’s]

rights under lease or rental agreement are forfeited[.]” but the record does

not specify which rights Lara agreed to forfeit. (RJN, Exh. 3, ¶ 1.) The stipulated judgment specifies that

Hernandez is awarded possession, that Lara is to vacate by July 14, 2024, that

Hernandez may not lock out Lara before that date, and that Hernandez is to pay

Lara \$6,000.00. (See RJN, Exh. 3, ¶¶ 2,

4–6.) Since the stipulated judgment only

deals with possession of the property, the statement that Lara forfeits his

rights under the lease or rental agreement is ambiguous as to whether that

means the right to possess the property only or all rights that may arise from

the landlord-tenant relationship. (See RJN, Exh. 3, ¶ 2.) In other

words, it is not apparent on the face of the pleading or from the judicially

noticed materials that the same issues were actually litigated and necessarily

decided. Thus, the court finds the

first, second, third, fifth, and sixth causes of action are sufficiently pled

and are not barred by issue preclusion.

Therefore,

the demurrer is OVERRULED to the first, second, third, fifth, and sixth

causes of action.

Ninth

Cause of Action: Wrongful Withholding of Security Deposit

Hernandez

argues that the ninth cause of action is barred by issue preclusion. The court agrees.

As

stated above, issue preclusion requires a showing that (1) the present

proceeding is deciding the same issue as the prior proceeding; (2) there was a

final adjudication on the merits; (3) the issue was actually litigated and

necessarily decided in the prior proceeding; and (4) the parties in the present

proceeding or parties in privity with them were parties to the prior

proceeding. (See DKN Holdings LLC,

supra, 61 Cal.4th at 825.)

Here,

for the first element, the Answer in the unlawful detainer action prayed that

the court's judgment deduct amounts equal to Lara's "returnable deposits" paid

to Hernandez. (RJN, Exh. 2, Attach. 3w,

p. 2.) For the second element, the

parties entered into an “unlawful detainer stipulation and judgment.” (RJN, Exh. 3, p. 1.) For the third element, the stipulated

judgment provides, “[Lara’s] security deposit . . . shall be retained by

[Hernandez,] and [Lara] waive(s) any claim to its return.” (RJN, Exh. 3, ¶ 3.) For the fourth element, the parties in this

action are the same as the parties in the unlawful detainer action. (See generally RJN, Exhs. 1–3.) Thus, the ninth cause of action is barred by

issue preclusion because the stipulated judgment conclusively decided the

security deposit issue.

Therefore,

the demurrer is SUSTAINED WITHOUT LEAVE TO AMEND as to the ninth cause

of action.

Statute

of Limitations

Legal

Standard

“A

demurrer based on a statute of limitations will not lie where the action may

be, but is not necessarily, barred. In

order for the bar of the statute of limitations to be raised by demurrer, the

defect must clearly and affirmatively appear on the face of the complaint; it

is not enough that the complaint shows that the action may be barred.” (See Marshall, *supra*, 7

Cal.App.4th at 1403, internal citation omitted.)

“In

order to rely on the discovery rule for delayed accrual of a cause of action, a

plaintiff whose complaint shows on its face that [their] claim would be barred

without the benefit of the discovery rule must specifically plead facts to show

(1) the time and manner of discovery and (2) the inability to have made earlier

discovery despite reasonable diligence.”

(Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 808,

cleaned up.)

Discussion

Hernandez

argues that the tenth cause of action is barred by the statute of limitations

for fraud. The court agrees.

There

is a three-year statute of limitations for “[a]n action for relief on the

ground of fraud. . . .” (Code Civ.

Proc., § 338, subd. (d).)

The

Complaint alleges that Hernandez represented in 2017 that the solar panels would

reduce Lara’s electricity bills and benefit Lara financially. (Compl., ¶¶ 18, 114.) Applying the three-year statute of

limitations, Lara's fraud claim should have expired in 2020. (See Code Civ. Proc., § 338, subd.

(d).) Lara alleges he was surprised to

receive an annual bill of \$1,000.00 and to incur additional costs associated

with the solar panels, but the Complaint is silent as to the alleged dates Lara

received the heightened bills and bore the additional costs. (Compl., ¶¶ 19, 115.) Thus, Lara failed to allege facts about the

time he discovered the truth about the solar panel costs and failed to allege

facts about the inability to discover the truth earlier.

Therefore,

the demurrer is SUSTAINED WITHOUT LEAVE TO AMEND as to the tenth cause

of action.

Failure

to State Sufficient Facts

Legal

Standard

A

party may demur to a complaint on the grounds that it "does not state facts

sufficient to constitute a cause of action."

(Code Civ. Proc., § 430.10, subd. (e).)

A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th

740, 747.) When considering demurrers,

courts accept all well pleaded facts as true.

(Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068,

1078.) The court should also draw

reasonable inferences in favor of the pleading subject to demurrer. (Kruss v. Booth (2010) 185 Cal.App.4th

699, 727.) The court should liberally

construe the complaint to bring substantial justice between the parties. (Addiego v. Hill (1965) 238 Cal.App.2d

842, 845.) To sustain a demurrer,

defects must be apparent on the face of the pleading or via proper judicial

notice. (Donabedian, supra,

116 Cal.App.4th at 994; SKF Farms v. Super. Ct. (1984) 153 Cal.App.3d

902, 905, stating, "A demurrer tests the pleadings alone and not the evidence

or other extrinsic matters. Therefore,

it lies only where the defects appear on the face of the pleading or are

judicially noticed."; Hahn, supra, at 747, stating, "The only

issue involved in a demurrer hearing is whether the complaint, as it stands,

unconnected with extraneous matters, states a cause of action.")

Discussion

Fourth

Cause of Action: Retaliation

Hernandez

argues that the fourth cause of action fails to state sufficient facts to

support a cause of action for retaliation.

The court disagrees.

If

a lessee exercises their right by complaining to a public health agency about

the habitability of the dwelling, then the lessor cannot retaliate against the

lessee by recovering possession of the dwelling in any action or proceeding,

cause the lessee to vacate the dwelling involuntarily, increase the rent, or

decrease any services within 180 days of the date the public health agency

inspects or issues a citation resulting from the lessee's complaint to the

agency. (See Civ. Code, § 1942.5,

subds. (a)(2)–(a)(3).) For the lessee to

receive protection under Section 1942.5, subdivision (a), they cannot be in

default on rent. (See Civ. Code,

§ 1942.5, subd. (a).)

The

Complaint alleges that Lara complained to DPH in late 2023 or early 2024 about

“severe habitability violations,” including the leaking roof. (Compl., ¶¶ 42–43, 74.) Lara alleges that DPH investigated

Hernandez's property and cited it for health and safety violations. (Compl., ¶¶ 44, 75.) The Complaint alleges that as a result of

Lara's DPH complaint, Hernandez retaliated against Lara by demanding that he

vacate the property, served Lara with a notice to vacate, and filed two

unlawful detainer actions. (Compl., ¶¶

76–77.) Hernandez contends that Lara

concedes that he defaulted on rent by alleging that Hernandez dismissed an

unlawful detainer action when he "accepted rent payments." (Dem., p. 9, quoting Compl., ¶ 76.) However, this allegation does not demonstrate

that Lara defaulted on rent; it only implies that Hernandez did not accept rent

until that point. In other portions of

the Complaint, Lara alleges that Hernandez falsely "claimed [Lara] and his

family failed to pay rent," which is contradicted by "[Lara's] documented

history of timely rent payments."

(Compl., ¶ 38; see also Compl., ¶ 76, alleging that the unlawful

detainer action was "without legitimate grounds.") Thus, the Complaint alleges sufficient facts for

each aspect of a cause of action for retaliation under Civil Code section

1942.5.

Therefore,

the demurrer is OVERRULED as to the fourth cause of action.

Seventh

Cause of Action: Intentional Infliction of Emotional Distress

Hernandez

argues that the seventh cause of action fails to state sufficient facts to

support a cause of action for intentional infliction of emotional

distress. The court disagrees.

“The

elements of a prima facie case for the tort of intentional infliction of

emotional distress are: (1) extreme and outrageous conduct by the defendant

with the intention of causing, or reckless disregard of the probability of

causing, emotional distress; (2) the plaintiff's suffering severe or extreme

emotional distress; and (3) actual and proximate causation of the emotional

distress by the defendant's outrageous conduct.” (Wilson v. Hynek (2012) 207

Cal.App.4th 999, 1009, cleaned up.)

Outrageous conduct means conduct that is “so extreme as to exceed all

bounds of that usually tolerated in a civilized community.” (Ibid.) A pleading that alleges severe or extreme

emotional distress must “set forth any facts which indicate the nature or

extent of any mental suffering.” (Bogard

v. Employers Casualty Co. (1985) 164 Cal.App.3d 602, 617–618.)

Here,

for the first element, the Complaint alleges that Hernandez “us[ed]

intimidation tactics designed to cause [Lara] severe emotional distress” with

the intention of “coerc[ing] [Lara] into vacating the property.” (Compl., ¶ 95.) Specifically, the Complaint alleges that

Hernandez sent Lara threatening and coercive text messages, surveilled Lara's family, entered the property without Lara's permission, threatening Lara's family members, and threatening immigration enforcement. (Compl., ¶ 95.) For the second and third elements, Lara alleges that he suffered "anxiety, fear, and sleeplessness" and "feelings of insecurity and helplessness" as a result of Hernandez's threats and unauthorized entry. (Compl., ¶ 96.) Thus, the Complaint alleges sufficient facts for each element of intentional infliction of emotional distress.

Therefore,

the demurrer is OVERRULED as to the seventh cause of action.

Eighth

Cause of Action: Negligent Infliction of Emotional Distress

Hernandez

argues that the eighth cause of action fails to state sufficient facts to support a cause of action for negligent infliction of emotional distress. The court disagrees.

"The

negligent causing of emotional distress is not an independent tort, but the

tort of negligence. The traditional

elements of duty, breach of duty, causation, and damages apply. Whether a defendant owes a duty of care is a

question of law." (Spates v. Dameron

Hospital Assn. (2003) 114 Cal.App.4th 208, 213, cleaned up.)

As

a preliminary matter, Hernandez chiefly contends that the court should sustain

the demurrer because negligent infliction of emotional distress is not an

independent tort. (See Dem., p. 10.) However, the court recognizes that some cases

“by their very nature[] involve several causes of action arising from the same

set of facts,” which may require a party to “plead a variety of statutory,

tort[,] and contract causes of action in order to fully protect [their

interests.” (Brown v. Super. Ct.

(1984) 37 Cal.3d 477, 486.) The court

also recognizes that recent cases have found that redundancy is not a proper

ground to sustain a demurrer. (See

R.L. v. Merced City School Dist. (2025) 114 Cal.App.5th 89, 119.) Thus, the court will only sustain a demurrer

to this cause of action if it fails to allege sufficient facts to each element

of negligence.

For

the first element, the Complaint alleges that Hernandez owed Lara a “duty of

care as his landlord, which included ensuring a safe, habitable, and

harassment-free living environment.”

(Compl., ¶ 100.) For the second

element, Lara alleges that Hernandez “breached this duty by failing to repair

the significant habitability issues . . . , including a leaking roof, persistent plumbing issues, broken windows, and severe rat and insect infestations” and “engag[ing] in a pattern of intimidating behavior, including unannounced and unauthorized entries, continuous surveillance, and threats. . . .” (Compl., ¶ 101.) For the third and fourth elements, the Complaint alleges that Hernandez’s breaches of duty caused Lara to experience emotional distress, including “anxiety, fear, and insecurity.” (Compl., ¶¶ 102–103; see also Compl., ¶ 96, describing the emotional distress as “anxiety, fear, and sleeplessness” and “feelings of insecurity and helplessness.”) Thus, the Complaint alleges sufficient facts for each element of negligence resulting in emotional distress.

Therefore,

the demurrer is OVERRULED as to the eighth cause of action.

Tenth

Cause of Action: Fraud by Misrepresentation

Since

the court found that the tenth cause of action is barred by the statute of limitations, the court deems moot the parties arguments regarding whether it states sufficient facts.

Eleventh

Cause of Action: Unlawful Business Practices

Hernandez

argues that the eleventh cause of action fails to state sufficient facts to

support a cause of action for unlawful business practices. The court agrees.

A

claim for unfair business practices requires a plaintiff to establish that the

defendant engaged in an “unlawful, unfair[,] or fraudulent business act or

practice and unfair, deceptive, untrue[,] or misleading advertising.” (Bus. & Prof. Code, § 17200.) A cause of action for unfair competition “is

not an all-purpose substitute for a tort or contract action.” (Cortez v. Purolator Air Filtration

Products Co. (2000) 23 Cal.4th 163, 173.)

Here,

the Complaint alleges that Hernandez engaged in acts that were “deceptive,

unfair, and unlawful.” (Compl., ¶ 122.) However, while the Complaint alleges a

breadth of conduct, it does not specify which conduct is alleged to constitute

the deceptive, unfair, and unlawful business practices. (See Compl., ¶¶ 120–124.) Furthermore, as Hernandez highlights, if the

cause of action is based on alleged fraud, then it may be subject to the same

three-year statute of limitations as the tenth cause of action. (See Dem., p. 12; see also Code

Civ. Proc., § 338, subd. (d).)

Therefore,

the demurrer is SUSTAINED WITH LEAVE TO AMEND as to the eleventh cause

of action.

MOTION

TO STRIKE

Since

the court grants leave to amend, the court deems the motion to strike as MOOT.

CONCLUSION

For

these reasons, the demurrer is SUSTAINED IN PART WITH TWENTY (20) DAYS LEAVE

TO AMEND as to the eleventh cause of action, SUSTAINED IN PART WITHOUT

LEAVE TO AMEND as to the ninth and tenth causes of action, and OVERRULED

IN PART as to the first, second, third, fourth, fifth, sixth, seventh, and

eighth causes of action.

The

motion to strike is deemed MOOT.